

---

## St Johns and Tunstead Primary Schools Audit Report

**Audit Dates:** St Johns -

6/11 and Tunstead - 12/11

**Report:** Year 2 visit 1

**DPE:** Stuart Lee

**School member:** Emma Watts

---

### 1. Visit details

In addition to the audit walks, key GDPR documentation was reviewed and DPE best practice areas, compliance checklists, SLAs, record of processing and compliance manager were discussed/demonstrated during the visit(s). The NCC GDPR audit findings (summer 2019) were also discussed with the schools (refer to section 7 below). Tunstead Primary currently have an interim executive headteacher: Angie Hamilton. Emma is finance officer at both schools and is championing the GDPR project. Some time was spent at Tunstead going through GDPR requirements with Honor, school administrator.

### 2. Audit walk findings

#### St Johns Primary School

Due to an Ofsted inspection no audit walk was completed at St Johns Primary.

#### Tunstead Primary School

Good practice observed again; forename predominantly used around school; desks were clear and tidy and staff utilise electronic systems (i.e. Pupil Asset) to access sensitive data, rather than using physical folder systems.

##### HT office:

**Advisory:** The headteachers office would benefit by having keycode entry due to the data stored within. Items observed: Letter expressing concerns about a teacher leaving – 1997; 1 x assessment folder containing class lists with key data, full name, DOB and gender on display and 1 x Surface laptop in an in-tray.

##### Mobiles:

School is in the process of updating the mobile classroom. **Advisory:** As mobile is situated away from the school, secure entry/keycode entry should be considered.

##### Classrooms

1 x camera in which photos of students was accessed during visit (left on desk). Emma was not sure if this was school issue or staff members own device. **Action point:** Emma to follow up with staff member and school to ensure only school issue equipment is used.

##### Front office

1 x key box left open – keys on display. **Advisory:** Secure key box and consider key code entry for the front office.

**Visitor signing advisory point:** Add information at reception to inform visitors where they can access the school's privacy statement from i.e. school website (not discussed during visit);

**Whole school:** Introduce the best practice guide that can be displayed and used to support raising staff awareness: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

### 3. Compliance actions that should now be completed

#### Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

#### The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

#### 3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016%20IRMS%20Toolkit%20for%20Schools%20v5%20Master.pdf)
- DfE toolkit  
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment\\_data/file/747620/Data Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

#### 3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

#### 3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

#### 3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

## 4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

## 5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

## 6. Next steps

### Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

### 6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

## 7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>